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ASSOCIATION OF APARTMENT OWNERS
OF MARINE SURF WAIKIKI, INC.,
BY ITS BOARD OF DIRECTORS

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IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU DIVISION
STATE OF HAWAI'I

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Plaintiffs, vs. NIKODEM PIKOR, Defendant.	CIVIL NO. 1RC191003776 [Assumpsit] **PROPOSED** ORDER DENYING DEFENDANT/COUNTERCLAIM PLAINTIFF NIKODEM PIKOR'S MOTION FOR RECONSIDERATION OF ORDER GRANTING IN PART AND DENYING IN PART MOTION FOR ATTORNEYS' FEES AND COSTS [DKT. 423] FILED AUGUST 19, 2026 [DKT. 431]; CERTIFICATE OF SERVICE
NIKODEM PIKOR, Counterclaim Plaintiff, vs. ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Counterclaim Defendant.	**Hearing Date**: September 24, 2026 Hearing Time: 1:30 p.m. Judge: Chris A. Thomas Courtroom: 10B Trial Dates: May 12, 2022, October 26-27, 2022, January 11-12, 2023, and April 5, 2023

NIKODEM PIKOR,)
)
Third-Party Plaintiff,)
vs.)
)
THYSSENKRUPP ELEVATOR)
CORPORATION, a foreign profit)
corporation,)
Third-Party Defendant.)
_____)

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ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Plaintiffs, vs. NIKODEM PIKOR, Defendant.	CIVIL NO. 1RC191003776 [Assumpsit] ORDER DENYING DEFENDANT/ COUNTERCLAIM PLAINTIFF NIKODEM PIKOR'S MOTION FOR RECONSIDERATION OF ORDER GRANTING IN PART AND DENYING IN PART MOTION FOR ATTORNEYS' FEES AND COSTS [DKT. 423] FILED AUGUST 19, 2026 [DKT. 431]; CERTIFICATE OF SERVICE
NIKODEM PIKOR, Counterclaim Plaintiff, vs. ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Counterclaim Defendant.	**Hearing Date**: September 24, 2026 Hearing Time: 1:30 p.m. Judge: Chris A. Thomas Courtroom: 10B Trial Dates: May 12, 2022, October 26-27, 2022, January 11-12, 2023, and April 5, 2023

NIKODEM PIKOR,	)
	)
Third-Party Plaintiff,	)
vs.	)
	)
THYSSENKRUPP ELEVATOR CORPORATION, a foreign profit corporation,	)
	)
Third-Party Defendant.	)
	)

ORDER DENYING DEFENDANT/COUNTERCLAIM PLAINTIFF NIKODEM PIKOR'S MOTION FOR RECONSIDERATION OF ORDER GRANTING IN PART AND DENYING IN PART MOTION FOR ATTORNEYS' FEES AND COSTS [DKT. 423] FILED AUGUST 19, 2026 [DKT. 431]

On August 19, 2026, Defendant/Counterclaim Plaintiff Nikodem Pikor ("**Pikor**") filed his Motion For Reconsideration of Order Granting in Part and Denying in Part Motion for Attorneys' Fees and Costs ("**Motion for Reconsideration**"), at Dkt. 431.

On August 31, 2026, the Association of Apartment Owners of Marine Surf Waikiki, Inc. ("**the AOAO**") on the counterclaim, opposed the Motion for Reconsideration. [Dkt. 451]. After the Motion for Reconsideration was set for hearing, the AOAO on the counterclaim, on September 21, 2026, filed a supplemented opposition to the Motion for Reconsideration. [Dkt. 472]. The AOAO as Plaintiff, on September 21, 2026, opposed the Motion for Reconsideration. [Dkt 474].

On September 24, 2026, the Motion for Reconsideration came on for hearing via Zoom before the Honorable Chris A. Thomas, with Amanda L. Dutcher Esq. appearing on behalf of Pikor (and noting that a motion to withdraw as counsel for Pikor was pending), James R. Ferguson, Esq. appearing on behalf of the AOAO on the counterclaim, and Yun W. Kim Esq., and Glenn S. Horio, Esq. appearing on behalf of the AOAO as Plaintiff, and the Court considering the pending motion to withdraw as counsel, the fact that the issues were fully

briefed, and that there were no disputed facts, chose to decide the Motion for Reconsideration without a hearing, pursuant to Rule 78 of the District Court Rules of Civil Procedure, and took the matter under advisement. Thereafter, the Court having reviewed and considered the memoranda and declarations in support and in opposition, and being fully advised in the premises;

The Court finds that the motion for attorneys' fees and costs was a pre-judgment motion, decided before the final judgment was entered, and therefore the ninety day limitation of Hawai'i Rules of Appellate Procedure Rule 4(a)(3) does not apply; and therefore,

IT IS HEREBY ORDERED, ADJUDGED AND DECREED that Defendant/Counterclaim Plaintiff Nikodem Pikor's Motion for Reconsideration of Order Granting in Part and Denying in Part Motion for Attorneys' Fees and Costs filed August 19, 2026 [Dkt.431] is hereby DENIED.

DATED: Honolulu, Hawaii, _____.

_____
JUDGE OF THE ABOVE-ENTITLED COURT

APPROVED AS TO FORM:

_____	/s/ _____
Defendant/Counterclaim Plaintiff NIKODEM PIKOR	TERRANCE M. REVERE, ESQ. AMANDA L. DUTCHER, ESQ. Former/Withdrawn Attorneys for Defendant/Third-Party Plaintiff NIKODEM PIKOR

[Order Denying Defendant/Counterclaim Plaintiff Nikodem Pikor's Motion for Reconsideration of Order Granting in Part and Denying in Part Motion for Attorneys' Fees and Costs [Dkt. 423] Filed August 19, 2026 [Dkt. 431]; Certificate of Service: *AOAO Marine Surf Waikiki, Inc. v. Nikodem Pikor, et al*., Civ. No. 1RC191003776, Honolulu Dist. Court of the First Circuit, State of HI]

/s/ James R. Ferguson
JAMES R. FERGUSON
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OF MARINE SURF WAIKIKI, INC., BY ITS
BOARD OF DIRECTORS

/s/ Yun W. Kim
GLENN S. HORIO
YUN W. KIM
Attorneys for Plaintiff
Association of Apartment Owners of Marine Surf Waikiki, Inc., by its Board of Directors
ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., BY ITS
BOARD OF DIRECTORS

[Order Denying Defendant/Counterclaim Plaintiff Nikodem Pikor's Motion for Reconsideration of Order Granting in Part and Denying in Part Motion for Attorneys' Fees and Costs [Dkt. 423] Filed August 19, 2026 [Dkt. 431]; Certificate of Service: *AOAO Marine Surf Waikiki, Inc. v. Nikodem Pikor, et al*., Civ. No. 1RC191003776, Honolulu Dist. Court of the First Circuit, State of HI]

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ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Plaintiffs, vs. NIKODEM PIKOR, Defendant.	CIVIL NO. 1RC191003776 CERTIFICATE OF SERVICE
NIKODEM PIKOR, Counterclaim Plaintiff, vs. ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Counterclaim Defendant.	
NIKODEM PIKOR, Third-Party Plaintiff, vs. THYSSENKRUPP ELEVATOR CORPORATION, a foreign profit corporation, Third-Party Defendant.	

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing was duly served by depositing the same in the United States Mail, postage prepaid, hand-delivery, or electronically through JEFS to the following at their last known address:

	U.S. Mail	Hand Delivery	JEFS
GLENN S. HORIO, ESQ. Deeley King Pang & Van Etten 1003 Bishop Street, Suite 1550 Honolulu, HI 96813 Attorneys for Plaintiff ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., BY ITS BOARD OF DIRECTORS			X
NIKODEM PIKOR 2825 S. King St. Suite #2701 Honolulu HI, 96826 Defendant/ Counterclaim Plaintiff	X		X
TERRANCE M. REVERE, ESQ. AMANDA L. DUTCHER, ESQ. Revere & Associates Pali Palms Plaza 970 North Kalahea Street, Suite A3-1 Kailua, HI 96734 Former/Withdrawn Attorneys for Defendant/ Counterclaim Plaintiff NIKODEM PIKOR			X

DATED: Honolulu, Hawai‘i, October __, 2026.

/s/ James R. Ferguson
JAMES R. FERGUSON
JODIE D. ROECA
Attorneys for Counterclaim Defendant
ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., BY ITS BOARD OF DIRECTORS